

2:00 PM LINE 6

25-CIV-10124

KELCEY NUQUI VS. COUNTY OF SAN MATEO, A PUBIC ENTITY AND SUBDIVISION OF CALIFORNIA

KELCEY NUQUI

JUSTIN L. CLARK

COUNTY OF SAN MATEO, A PUBIC ENTITY AND SUBDIVISION OF CALIFORNIA CRAIG N. BAUMGARTNER

Defendant's Demurrer to Plaintiff's Complaint

TENTATIVE RULING:

For the following reasons, Defendant County of San Mateo's Demurrer to the Third Cause of Action for Disability Discrimination in Violation of FEHA, Fifth Cause of Action for Failure to Provide Reasonable Accommodations in Violation of FEHA, Sixth Cause of Action for Failure to Engage in Good Faith in the Interactive Process in Violation of FEHA, Ninth Cause of Action for Retaliation in Violation of the California Family Rights Act ("CFRA"), and Tenth Cause of Action for Interference with Rights in Violation of the CFRA is **SUSTAINED IN PART** with leave to amend and **OVERRULED IN PART**, as follows:

THIRD CAUSE OF ACTION FOR DISABILITY DISCRIMINATION IN VIOLATION OF FEHA

Against a public entity, material facts necessary to establish statutory liability must be pleaded with particularity. (*Agustin v. Golden Empire Transit Dist.* (2025) 116 Cal.App.5th 426; *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.)

The elements of a prima facie claim for mental-disability discrimination under FEHA are: (1) a qualifying mental disability; (2) the ability to perform the essential functions of the job, with or without reasonable accommodation; and (3) an adverse employment action because of the disability. (*Higgins-Williams v. Sutter Medical Foundation* (2015) 237 Cal.App.4th 78, 84.)

DISABILITY

Government Code section 12926 defines a mental disability to include a "mental or psychological disorder or condition, such as ... emotional or mental illness ... that limits a major life activity." (Gov. Code, § 12926, subd. (j)(1).) Plaintiff alleges that she "experienced aggravating medical symptoms related to stress, anxiety, difficulty and/or inability to eat, concentration problems." (Complaint, ¶ 20.) As pleaded, those allegations describe symptoms but do not identify a mental or psychological disorder or condition. Plaintiff's additional allegations that "Defendants knew of Plaintiff's disabilities" and that her "disabilities and medical conditions were substantial motivating reasons" for adverse treatment are conclusory as to the existence of a qualifying disability and do not satisfy the particularity required when pleading statutory liability against a public entity. (*Id.*, ¶¶ 41-42.)

Plaintiff emphasizes FEHA's broad definition of disability, but the pleading must still allege facts identifying a qualifying disorder or condition. The Complaint, as currently pleaded, does not do so.

CAUSATION

Plaintiff alleges that the severe and pervasive harassment and bullying by coworkers arose from sex discrimination and retaliation for her report, rather than from disability. (Complaint, ¶¶ 14, 19.) She further alleges that her stress-related symptoms were caused by the allegedly discriminatory and retaliatory conduct of Delfin and coworkers. (Id., ¶ 20.) On the chronology alleged, that earlier conduct could not have occurred because of symptoms that allegedly resulted from the conduct. Plaintiff also alleges that Dickens sent the June 17 text with disregard for Plaintiff's mental health and disability status. (Id., ¶ 22.) That allegation does not itself allege that Dickens sent the text because of a disability.

Plaintiff also alleges that her disabilities and medical conditions were substantial motivating reasons for the bullying texts and adverse treatment, but that allegation is conclusory. (Id., ¶ 42.)

Plaintiff correctly notes that alleged adverse actions must be assessed collectively and in context. (*Bailey v. San Francisco District Attorney's Office* (2024) 16 Cal.5th 611, 638.) That principle concerns whether conduct is materially adverse; it does not supply causation where the pleaded chronology does not connect the alleged disability to the challenged conduct.

The Demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

FIFTH CAUSE OF ACTION FOR FAILURE TO PROVIDE REASONABLE ACCOMMODATIONS IN VIOLATION OF FEHA

The Fifth Cause of Action fails for the same threshold reason as the Third Cause of Action: the Complaint does not adequately allege a qualifying disability.

Failure to reasonably accommodate under Government Code section 12940, subdivision (m), is an independent FEHA violation, and a leave of absence may constitute a reasonable accommodation. (*Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 242-243.) Plaintiff identifies the requested accommodation as "temporary time off ... for a recuperative leave of absence." (Complaint, ¶ 55.) The Complaint alleges that the County approved that leave in full and that it remained in effect until Plaintiff resigned one day before her scheduled return. (Id., ¶¶ 20, 23.) As currently pleaded, Plaintiff therefore does not allege that the requested leave accommodation was denied.

The Demurrer to the Fifth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SIXTH CAUSE OF ACTION FOR FAILURE TO ENGAGE IN GOOD FAITH IN THE INTERACTIVE PROCESS IN VIOLATION OF FEHA

The Sixth Cause of Action fails for the same threshold reason as the Third Cause of Action: the Complaint does not adequately allege a qualifying disability.

Defendant contends its duty to engage in the interactive process arose "only ... at the conclusion of her CFRA leave" and therefore was never triggered because Plaintiff resigned one day before her scheduled return. (Demurrer, p. 7:10-13.) The interactive-process duty, however, may be triggered by an employee's request for reasonable accommodation or by the employer's awareness of a possible need for accommodation through observation or a third party. (Cal. Code Regs., tit. 2, § 11069, subd. (b).) A request for medical leave may itself constitute a request for accommodation. (*Moore v. Regents of University of California*, *supra*, 248 Cal.App.4th at pp. 242-243.) Accordingly, Defendant's contention that the duty could arise only when CFRA leave ended does not provide an independent basis for sustaining the demurrer. The claim nevertheless fails as pleaded because Plaintiff has not adequately alleged a qualifying disability.

The Demurrer to the Sixth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

NINTH CAUSE OF ACTION FOR RETALIATION IN VIOLATION OF THE CALIFORNIA FAMILY RIGHTS ACT ("CFRA")

A CFRA retaliation claim requires a covered employer, an eligible employee, exercise of the right to qualifying leave, and an adverse employment action taken because of the exercise of that right. (*Rogers v. County of Los Angeles* (2011) 198 Cal.App.4th 480.) Defendant challenges the adverse-action and causation elements.

ADVERSE ACTION

Defendant argues that a single text from an acting supervisor who was not the ultimate decisionmaker is not a materially adverse action and that mere ostracism or relatively trivial conduct is not actionable. Plaintiff responds that the alleged conduct must be evaluated collectively and in context. (See *Bailey v. San Francisco District Attorney's Office*, *supra*, 16 Cal.5th at p. 638.) Plaintiff further contends that the conduct culminated in a constructive discharge.

A constructive discharge requires working conditions that are so intolerable or aggravated that a reasonable employee would be compelled to resign; single, trivial, or isolated acts generally are insufficient. The employer must intentionally create or knowingly permit the intolerable conditions. (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1247.) The Complaint alleges one June 17 text while Plaintiff was on approved leave. Standing alone, that allegation does not sufficiently plead a constructive discharge.

The Complaint also does not allege additional facts showing that the County directed, authorized, or ratified the June 17 text, or that County decisionmakers took any further adverse action before Plaintiff resigned. Those pleading gaps reinforce the deficiency in the constructive-discharge theory.

CAUSATION

Defendant argues that the approximately one-month interval between the June 17 text and Plaintiff's July 14 resignation, with no intervening County action alleged, fails to establish a causal link. Plaintiff's current allegations do not plead additional facts connecting the exercise of CFRA rights to a materially adverse employer action.

The Demurrer to the Ninth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

TENTH CAUSE OF ACTION FOR INTERFERENCE WITH RIGHTS IN VIOLATION OF THE CFRA

A CFRA interference claim requires entitlement to CFRA leave and employer interference with, restraint of, or denial of CFRA rights. (Gov. Code, § 12945.2, subd. (q).) The implementing regulation expressly provides that interference includes "discouraging an employee from using such leave." (Cal. Code Regs., tit. 2, § 11094, subd. (a).) Plaintiff alleges that, while she was on approved leave, Dickens urged her to "stop dragging this out" and "either come back or quit." (Complaint, ¶ 21.) At the pleading stage, those allegations are sufficient to allege discouragement from using CFRA leave.

The Demurrer to the Tenth Cause of Action is **OVERRULED**.

Plaintiff may file a First Amended Complaint within 10 days after service of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 7

25-CLJ-10223

JPMORGAN CHASE BANK, N.A. VS MERYAMA ALLAM

JPMORGAN CHASE BANK, N.A.
MERYAMA ALLAM

BRIAN LANGEDYK
PRO SE

Defendant's Motion to Quash Service of Summons

TENTATIVE RULING:

The motion to quash is **GRANTED**. The registered process server's return is entitled to the presumption stated in Evidence Code section 647, but Defendant has offered evidence sufficient to rebut that presumption. Her declaration states that no person matching the physical description in the proof of service resided at her home and that no competent member of her household was present to accept service. Plaintiff therefore bears the burden to establish facts supporting valid substituted service and has not presented evidence sufficient to show that the unidentified recipient was a member of Defendant's household. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.